

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

NATASHA McKOY,

Plaintiff,

-against-

THE CITY OF NEW YORK, DETECTIVE JOSEPH
FERNANDEZ, Shield No. 1815, SERGEANT AFZAL
ALI, Tax No. 936116, DETECTIVE TATMENG VONG,
Tax No. 951405 and DETECTIVE JAMES
SCHUESSLER, Shield No. 28718,

Defendants.

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SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates Kings
County as the place of trial.

To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
February 3, 2020

Yours, etc.

/s/
JACOBS & HAZAN, LLP.
DAVID M. HAZAN, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
DETECTIVE JOSEPH FERNANDEZ, SHIELD NO. 1815, NARCOTICS BOROUGH
BROOKLYN NORTH
SERGEANT AFZAL ALI, TAX NO. 936116, NARCOTICS BOROUGH BROOKLYN
NORTH
DETECTIVE TATMENG VONG, TAX NO., 951405, NARCOTICS BOROUGH
BROOKLYN NORTH
DETECTIVE JAMES SCHUESSLER, SHIELD NO. 28718, NARCOTICS BOROUGH
BROOKLYN NORTH

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INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff NATASHA McKOY, by his attorneys, Jacobs & Hazan, LLP, as and for his
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On August 24, 2017 at approximately 9:00 pm plaintiff was lawfully on her way home from work, walking through the courtyard located outside of her apartment building located at 89 Christopher Avenue, Brooklyn, New York 11212 when she was approached by defendants who unlawfully detained and falsely arrested plaintiff without legal justification or probable cause. The officers arrested plaintiff because she was unable to tell them where they could locate an individual named William Kleinfeldt, an individual whom the officers incorrectly believed plaintiff knew. Thereafter, the officers drove plaintiff around her housing complex for 45 minutes trying to make it look like plaintiff was an informant for the police and was pointing out suspects for the officers to target in the future. The officers did this because they were trying to pressure plaintiff to tell them where William Kleinfeldt was located. Eventually the officers realized that plaintiff was not going to lead them to William Kleinfeldt, and they transported plaintiff to the 73rd Precinct whereat plaintiff was unlawfully fingerprinted, photographed and detained in a holding cell for many hours. Eventually plaintiff was transported to Kings County Central Booking whereat the unlawful detention continued. The officers fabricated allegations and evidence against plaintiff by alleging that they recovered drugs from her possession. The officers did not inform the District Attorney's Office that they arrested plaintiff in the courtyard outside of her building and did not recover any illegal substances from her possession, custody or

control. The officers maliciously prosecuted plaintiff and denied plaintiff the right to due process and the right to a fair trial. On August 25, 2017, approximately 24 hours after the defendants initially detained plaintiff, she was arraigned in Kings County Criminal Court, charged with several drug related felony and misdemeanor crimes and released on her own recognizance. The felony charge brought against plaintiff was dismissed and sealed in its entirety on May 16, 2018 after the District Attorney's Office affirmatively moved to dismiss the charge. The only remaining charges were two counts of Criminal Possession of a Controlled Substance in the 7th Degree. After plaintiff endured a one year and 3 month long criminal prosecution during which she was required to appear in Kings County Criminal Court on 12 occasions to address the false charges, the remaining misdemeanor charges were dismissed and sealed in their entirety on November 5, 2018. Plaintiff was deprived of her constitutional and common law rights when the individual defendants unlawfully searched, falsely imprisoned, falsely arrested, maliciously prosecuted, and denied plaintiff the right to due process/ right to a fair trial in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff NATASHA McKOY is a resident of the state of New York.
3. DETECTIVE JOSEPH FERNANDEZ, Shield No. 1815, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
4. DETECTIVE JOSEPH FERNANDEZ, Shield No. 1815, was at all times relevant herein, assigned to the Narcotics Borough Brooklyn North.
5. DETECTIVE JOSEPH FERNANDEZ, Shield No. 1815, is being sued in his individual and official capacity.
6. SERGEANT AFZAL ALI, Tax No. 936116, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
7. SERGEANT AFZAL ALI, Tax No. 936116, is and was at all times relevant herein, assigned to the Narcotics Borough Brooklyn North.
8. SERGEANT AFZAL ALI, Tax No. 936116, is being sued in his individual and official capacity.
9. DETECTIVE TATMENG VONG, Tax No. 951405, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
10. DETECTIVE TATMENG VONG, Tax No. 951405, was at all times relevant herein, assigned to the Narcotics Borough Brooklyn North.
11. DETECTIVE TATMENG VONG, Tax No. 951405, is being sued in his individual and official capacity.

12. DETECTIVE JAMES SCHUESSLER, Shield No. 28718, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

13. DETECTIVE JAMES SCHUESSLER, Shield No. 28718, is and was at all times relevant herein, assigned to the Narcotics Borough Brooklyn North.

14. DETECTIVE JAMES SCHUESSLER, Shield No. 28718, is being sued in his individual and official capacity

15. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

16. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

17. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a Notice of Claim with the CITY OF NEW YORK in compliance with the Municipal Law Section 50 and a Hearing was held by the City of New York pursuant to General Municipal Law Section 50-h on February 5, 2019.

18. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claim.

19. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

20. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

21. On August 24, 2018 plaintiff lived with her 15-year-old son at 89 Christopher Avenue, Apt. 12E, Brooklyn, New York 11212.

22. By way of background, on August 15, 2017, defendant Detective Joseph Fernandez applied for a search warrant to search 89 Christopher Avenue, Apt. 12E, Brooklyn, New York 11212, and an invalid search warrant was issued by the Court to search the apartment.

23. The Court issued the search warrant based only upon the testimony of defendant Detective Fernandez which was insufficient to legally issue a search warrant.

24. The search warrant authorized the search of the apartment to search for described contraband on the person of William Kleinfeldt who was described as a male black approximately 160- 180 pounds, 5'10 to 6' tall.

25. According to defendant Detective Fernandez, the entire basis for requesting the search warrant to search plaintiff's apartment was based upon allegations made by a Confidential Informant that were not witnessed or verified by the police officers.

26. According to defendant Detective Fernandez, the police officers waited outside of 89 Christopher Avenue on two separate occasions while a Confidential Informant entered the building and allegedly purchased crack from an individual named William Kleinfeldt who allegedly exited Apt 12E to make the sale to the Confidential Informant.

27. Notably, defendant Detective Fernandez did not mention plaintiff or her son at any point during his application for the search warrant because at no point in time did the CI interact with them or see them present at the location when he allegedly purchased crack from William Kleinfeldt, and plaintiff and her son did not have any involvement the illegal activities the Detective was investigating.

28. According to defendant Detective Fernandez, he obtained all of the evidence used to obtain the search warrant for the apartment from a Confidential Informant and never personally witnessed any drug transactions from 89 Christopher Avenue, Apt. 12E that were described to him by the Confidential Informant.

29. At no time did the purported Confidential Informant testify in front of the Judge that issued the search warrant, nor did the CI make any written statements.

30. Additionally, the CI did not make any allegations of drug transactions at that location that were close in time to the date that the search warrant was issued and there was no basis to believe that there were any illegal drugs inside of the apartment at the time the search warrant was issued or executed.

31. In fact, the alleged drug activity at the apartment alleged by the CI may have even occurred before plaintiff and her son lived in that apartment.

32. The search warrant executed at plaintiff's apartment by the defendants was invalid and unlawfully issued because the search warrant was issued based upon defendant Detective Joseph Fernandez's affidavit which contained barebones assertions as to the Confidential Informant's reliability.

33. The warrant was not issued upon the requisite probable cause required because the warrant application failed to adequately describe how the informant acquired his information and does not set forth facts to conclude the informant was credible or his information was reliable.

34. According to defendant Detective Fernandez, none of the information provided to him by the CI was independently verified by the police prior to the issuance of the search warrant.

35. In fact, defendant Detective Fernandez admits that the police did not observe the Confidential Informant at all inside of 89 Christopher Street during the drug transactions alleged by the Confidential Informant because the police officers waited outside of the building for the Confidential Informant to complete the drug transaction and exit the building.

36. Defendants did not monitor the informant's movements or observe the informant at any point during the alleged drug transactions.

37. Additionally, there was no basis for defendant Detective Fernandez or the Court to conclude that apartment 12E had contraband inside of it.

38. Importantly, the CI never claimed to have entered the actual apartment.

39. As the CI had no personal knowledge of an actual drug stash being held in the location, there was not any basis for the Court to issue a search warrant to search plaintiff's apartment.

40. The entry into and the search of plaintiff's apartment by defendants was unlawful and was conducted after defendant Detective Fernandez unlawfully obtained a search warrant to search plaintiff's apartment without probable cause to believe there were illegal drugs or contraband inside of the apartment.

41. Plaintiff and her son do not know, have never seen and have never heard of an individual named William Kleinfeldt and an individual with that name never visited their apartment while they lived there.

42. On August 24, 2017 at approximately 9:00 pm, plaintiff was returning home from a full day of work at the bakery located at Chelsea Piers when she ran into her son and her girlfriend in the courtyard located in front of her apartment building.

43. Plaintiff's son was coming from a friend's apartment located in a nearby building and he advised plaintiff that according to his friend, police officers were looking for his mother.

44. Plaintiff was confused about why police officers would be looking for her. because she is a law-abiding citizen and never has any interactions with police officers.

45. At that moment, plaintiff and her son did not know that the defendants had already raided their apartment looking for an individual named William Kleinfeldt.

46. As plaintiff was standing in the courtyard with her son and her girlfriend, they were approached by several men in plain clothes who turned out to be the individually named defendant police officers.

47. The defendants addressed plaintiff by name, but plaintiff had never seen or interacted with defendants before and she was confused about how they knew her name.

48. Defendants immediately asked, "Where is William Kleinfeldt?"

49. Plaintiff had no idea who that was, and she responded by asking "Who?"

50. Defendants asked again, and plaintiff told them that she did not know what he was talking about or who that person was.

51. Then, defendants told plaintiff's son and girlfriend to please go to the store and buy them a lighter because they wanted to smoke cigarettes.

52. The defendants told her son and girlfriend not to worry, they would not arrest plaintiff while they were getting the lighter.

53. Pursuant to the defendants' order, plaintiff's son and girlfriend went to the store to get the defendants a lighter.

54. Plaintiff had no idea what was going on and she asked the defendants if they were playing a joke on her.

55. The defendants told plaintiff that they were not joking, and told plaintiff that plaintiff was not the person they were looking for.

56. The officers told plaintiff that if she gave them William Kleinfeldt then they would let plaintiff go.

57. Plaintiff told the defendants that she did not know what they were talking about and that she could not give them the person because she did not know who they were talking about.

58. The defendants responded by stating that if she didn't give them William Kleinfeldt then they would arrest her "for everything in her possession."

59. Notably, plaintiff did not have anything illegal in her possession while she was standing in the courtyard with the defendants.

60. Defendants raided plaintiff's apartment looking for William Kleinfeldt a few hours earlier.

61. Defendants were disappointed to learn that nobody was present in the apartment when they raided it.

62. Furthermore, defendants were surprised to learn from mail they found in the apartment that plaintiff was the leaseholder for the apartment and lived in the apartment with her son.

63. Prior to executing the search warrant the defendants incorrectly believed William Kleinfeldt lived in the apartment.

64. The defendants falsely allege that they found powdered ecstasy that was never chemically tested and crack in plaintiff's son's bedroom within the apartment.

65. Plaintiff denies that there were any drugs located in the apartment,

66. The defendants lacked probable cause to arrest and/ or prosecute plaintiff for allegedly possessing a controlled substance or for committing any other crime.

67. However, when plaintiff was unable to lead the defendants to William Kleinfeldt, the defendants unlawfully handcuffed, falsely arrested and placed plaintiff in a police vehicle.

68. The defendants then proceeded to drive plaintiff around her apartment complex for approximately 45 minutes because they were trying to make it appear that plaintiff was with the police "telling on residents who committed crimes."

69. The defendants did this to try to scare plaintiff into leading them to William Kleinfeldt.

70. Thereafter the defendants transported plaintiff to the 73rd Precinct whereat she was unlawfully fingerprinted, photographed and detained in a holding cell for many hours,.

71. The defendants provided the Kings County District Attorney's Office with false misleading and incomplete evidence and information regarding the defendants' basis for arresting plaintiff and charging her with felony and misdemeanor crimes.

72. For example, in the arrest report the defendants falsely alleged that they found plaintiff in possession of crack and ecstasy while they executed a search warrant in her apartment.

73. Although the defendants do not dispute that they arrested plaintiff several hours after the search warrant was executed as plaintiff was walking in the courtyard outside of

her apartment building and they did not recover any illegal drugs or weapons in her possession when they arrested her.

74. Furthermore, the defendants omitted from the arrest report the facts that plaintiff was not present in the apartment when they executed the search warrant, that plaintiff was not the target of the search warrant, and that the defendants believed the drugs they allegedly recovered belonged to a man named William Kleinfeldt and not plaintiff.

75. The defendants failed to notify the District Attorney's Office that they allegedly recovered the drugs from plaintiff's son's bedroom which was not within the custody or control of plaintiff.

76. The defendants lied about how they knew plaintiff.

77. Based upon the officers' false, misleading and incomplete allegations against plaintiff, a criminal prosecution was maliciously initiated against her, without probable cause.

78. The defendants maliciously prosecuted plaintiff and denied her the right to due process/ right to a fair trial.

79. Plaintiff was eventually transported to Kings County Central Booking where she was detained in several holding cells with numerous other prisoners for many hours.

80. Plaintiff was arraigned in Kings County Criminal Court on August 25, 2017, approximately 24 hours after she was initially detained by the defendants.

81. At arraignment plaintiff was charged with a felony, Criminal Possession of a Controlled Substance in the Third Degree (PL 220.16(1)), and a misdemeanor, Criminal Possession of a Controlled Substance in the Seventh Degree (PL 220.03).

82. Plaintiff was released from custody on her own recognizance at arraignment.

83. The felony charge brought against plaintiff was dismissed and sealed in its entirety on May 16, 2018 after the District Attorney's Office affirmatively moved to dismiss the charge.

84. After the felony charge was dismissed, the only remaining charges were two counts of Criminal Possession of a Controlled Substance in the 7th Degree.

85. After plaintiff endured a one year and 3 month long criminal prosecution during which she was required to appear in Kings County Criminal Court on 12 occasions to address the false charges brought against her, the remaining misdemeanor charges were dismissed and sealed in their entirety on November 5, 2018.

86. The arrest and prosecution of plaintiff for crimes she did not commit affected many important areas of her life negatively and caused her to suffer extreme emotional distress and depression.

87. In addition to being fired from her job resulting in the loss of a significant amount of income, plaintiff was also evicted from her apartment and forced to move as a result of the false accusations made against her by the defendants.

88. The false arrest and malicious prosecution of plaintiff for felony and misdemeanor crimes she did not commit caused plaintiff to suffer from such severe and debilitating emotional distress.

89. After plaintiff was falsely arrested she began suffering from severe insomnia and she suffers from depression and anxiety as well.

90. Those officers that did not physically touch plaintiff but observed their fellow officers violating plaintiff's rights under New York State law and the Constitution but neglected to intervene to stop their fellow officers from continuing to violate plaintiff's rights are liable to plaintiff for their failure to intervene.

91. Plaintiff suffered severe emotional distress stress caused by defendants' false arrest, and subsequent unlawful criminal prosecution of plaintiff

92. At no time relevant herein did plaintiff commit a crime or violate the law in any manner, nor did the defendant police officers possess an objective factual basis to establish probable cause to believe he committed a crime or violated the law in any manner.

93. At no time relevant herein did the officers recover any illegal drugs, weapons, or contraband of any kind from plaintiff's possession custody or control.

94. The unlawful search, false arrest, false imprisonment, malicious prosecution, and denial of due process/ right to a fair trial against plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological, economic, and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment and Fourteenth Amendment Rights

95. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 94 with the same force and effect as if more fully set forth at length herein.

96. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stopped, questioned, frisked, seized, searched, falsely arrested, falsely imprisoned, maliciously prosecuted, and denied

plaintiff the right to due process/ a fair trial without probable cause, in violation of plaintiff's right to be free from an unreasonable seizure under the Fourth Amendment to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

97. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

98. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 97 with the same force and effect as if more fully set forth at length herein.

99. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

100. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

101. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

102. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

103. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

104. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 103 with the same force and effect as if more fully set forth at length herein.

105. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

106. The conduct of defendants in stopping, frisking, and searching, plaintiff were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

107. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

108. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

109. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

110. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Search

111. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 110 with the same force and effect as if more fully set forth at length herein.

112. The illegal approach, pursuit, stop and search inside plaintiff's pockets, inside of the waistband of his pants and underneath his clothing employed by defendants herein, and terminated plaintiff's freedom of movement through means intentionally applied.

113. Defendants lacked probable cause to search plaintiff.

114. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

115. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

116. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

117. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Malicious Prosecution

118. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 117 with the same force and effect as if more fully set forth at length herein.

119. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York and New York State common law.

120. Defendants commenced and continued a criminal proceeding against plaintiff.

121. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

122. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned dates.

123. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

124. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

125. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

SIXTH CAUSE OF ACTION

Violation of Plaintiff's Fifth Amendment and Fourteenth Amendment Rights

Denial of Right to Fair Trial

126. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 through 125 with the same force and effect as if fully set forth herein.

127. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

128. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

129. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.

130. In withholding/creating false evidence against plaintiff, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

131. As a result of the foregoing, plaintiff, sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

132. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

133. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

134. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

135. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 134 with the same force and effect as if more fully set forth at length herein.

136. By falsely arresting plaintiff and then fabricating allegations against plaintiff to justify why defendants arrested her, defendants each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff. The acts and conduct of the defendants were the direct and proximate cause of damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

137. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

138. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

139. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

140. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

EIGHTH CAUSE OF ACTION

Intentional Infliction of Emotional Distress

141. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 140 with the same force and effect as if more fully set forth at length herein.

142. The above-described conduct by falsely arresting plaintiff and then fabricating allegations against plaintiff to justify why defendants arrested him, defendants, each acting individually and in concert with each other, defendants' conduct was outrageous, atrocious so extreme in degree to go beyond all possible bounds of decency, and utterly intolerable in a civilized community.

143. Defendants' conduct was intentional, wanton and reckless and was done with a total disregard of the risks to plaintiff's health and safety.

144. As a direct and proximate result of the acts alleged above, plaintiff suffered severe emotional distress, humiliation, mental anguish, and physical distress.

145. The acts of defendants alleged above were willful, wanton, flagrant, malicious, oppressive, and performed with a total disregard for plaintiff's health safety and welfare and justify the award of punitive damages.

146. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

147. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

148. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

149. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

NINTH CAUSE OF ACTION

Failure to Intervene

150. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 149 with the same force and effect as if more fully set forth at length herein.

151. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

152. Defendants failed to intervene to prevent the unlawful conduct described herein.

153. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

154. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

155. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

TENTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

156. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 155 with the same force and effect as if more fully set forth at length herein.

157. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

JURY DEMAND

158. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Natasha McKoy demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
February 3, 2020

By: /s/
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

DAVID M. HAZAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
February 3, 2020

/s/
DAVID M. HAZAN